

24CHCV03542 24CHCV03542

County: los-angeles

Division: Civil Law and Motion

Department: F51

Hearing date: 2026-07-21

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=CHA%2CF51%2C07%2F21%2F2026

Source SHA-256: 32ffc5263647fbd92b90166eaf34cccefde4c46ba2950431ac0bf2a2e02262f3

Case Number: 24CHCV03542 Hearing Date: July 21, 2026 Dept: F51

Dept. F-51

Date: 7/22/26

Case #24CHCV03542

LOS

ANGELES SUPERIOR COURT

NORTH

VALLEY DISTRICT

DEPARTMENT

F-51

JULY 21, 2026

MOTION FOR SUMMARY

AJUDICATION

Los Angeles Superior Court Case # 24CHCV03542

Motion

Filed: 4/16/26 NON-JURY TRIAL: 11/2/26

MOVING PARTY: Plaintiff Lorena Ramos ("Plaintiff")

RESPONDING PARTY: Defendant Elva Ramos ("Defendant")

NOTICE: OK

¿

RELIEF REQUESTED: An

order granting summary adjudication in favor of Plaintiff, and against Defendant, on Plaintiff's first, fourth, fifth, and sixth causes of action.

TENTATIVE RULING: The motion for summary adjudication is denied.

REQUEST FOR JUDICIAL

NOTICE: Plaintiff's request for judicial notice is granted as to the existence, but not the contents, of Exhibits 6 and 8.

BACKGROUND

This is a defamation action wherein Plaintiff alleges that Defendant (Plaintiff's sister-in-law) unlawfully accessed and subsequently disseminated Plaintiff's "confidential medical information to third parties. Defendant, in addition to the above, falsely published to third parties that Plaintiff was unfaithful to her fiancé and that she was promiscuous." (FAC ¶ 1.)

On 10/1/24, Plaintiff filed her original complaint, alleging against Defendant five Intentional Tort causes of action and a cause of action for General Negligence. On 11/14/24, Plaintiff filed her operative first amended complaint ("FAC"), alleging against Defendant the following causes of action: (1) Intentional Infliction of Emotional Distress; (2) Defamation; (3) Defamation Per Se; (4) Wrongful Intrusion into Private Matters; (5) Public Disclosure of Private Facts; and (6) Negligence. On 12/19/24, Defendant filed her answer.

On 4/16/26, Plaintiff filed the instant motion for summary adjudication. On 6/16/26, Defendant filed her opposition. On 7/6/26, Plaintiff filed her reply.

//

//

//

ANALYSIS

The function of a motion for summary judgment or adjudication is to allow a determination as to whether an opposing party cannot show evidentiary support for a pleading or claim and to enable an order of summary dismissal without the need for trial. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843.) Code of Civil Procedure section 437c, subdivision (c) “requires the trial judge to grant summary judgment if all the evidence submitted, and ‘all inferences reasonably deducible from the evidence’ and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law.” (*Adler v. Manor Healthcare Corp.* (1992) 7 Cal.App.4th 1110, 1119.) “The function of the pleadings in a motion for summary judgment is to delimit the scope of the issues; the function of the affidavits or declarations is to disclose whether there is any triable issue of fact within the issues delimited by the pleadings.” (*Juge v. County of Sacramento* (1993) 12 Cal.App.4th 59, 65, citing *FPI Development, Inc. v. Nakashima* (1991) 231 Cal.App.3d 367, 381–382.)

As to each claim as framed by the complaint, a plaintiff moving for summary judgment has met her “burden of showing that there is no defense to a cause of action if that party has proved each element of the cause of action entitling the party to judgment on the cause of action.” (Code Civ. Proc. § 437c, subd. (p)(1).) Once the plaintiff has met that burden, the burden shifts to the defendant “to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” (*Ibid.*) Courts “liberally construe the evidence in support of the party opposing summary judgment and resolve doubts concerning the evidence in favor of that party.” (*Dore v. Arnold Worldwide, Inc.* (2006) 39 Cal.4th 384, 389.)

A.

Collateral

Estoppel

Res judicata, or claim preclusion, “applies when (1) the decision in the prior proceeding is final and on the merits, (2) the present proceeding is on the same cause of action as the prior proceeding, and (3) the parties in the present proceeding or parties in privity with them were parties to the prior proceeding. Upon satisfaction of these conditions, claim preclusion bars not only issues that were actually litigated but also issues that could have been litigated. (Planning & Conservation League v. Castaic Lake Water Agency (2009) 180 Cal.App.4th 210, 226 [internal quotations and citations omitted].)

The doctrine of collateral estoppel, or issue preclusion, is narrower than that of res judicata, and operates to bar the relitigation of issues previously litigated, applying only “(1) after final adjudication (2) of an identical issue (3) actually litigated and necessarily decided in the first suit and (4) asserted against one who was a party in the first suit or one in privity with that party.” (Samara v. Matar (2018) 5 Cal.5th 322, 327.)

Here,

Plaintiff argues that on 2/13/24, Defendant “filed a Request for a Domestic Violence Restraining Order (‘DVRO’), Case No. 24CHR00281.” (MSJ 5:10–11.) On 2/29/24, Plaintiff “filed a Request for a DVRO, Case No. 24CHR00322.” (Id. at 7:2.) “In February 2024, the Court deemed Lorena’s Action related to Elva’s Action.” (Id. at 7:28, fn.3.) On 5/22/24, “Judge Richman issued a Minute Order granting Lorena’s request for a DVRO.” (Id. at 12:9–10.) Plaintiff argues that the doctrine of collateral estoppel applies here because “in Lorena’s DVRO Action, Lorena proved that Elva disturbed Lorena’s peace by wrongfully (and intentionally): (1) accessing Lorena’s confidential medical information; and (2) revealing information about Lorena’s prior STD to Mr. Jimenez. In this action, Lorena seeks damages from Lorena based on the identical conduct.” (Id. at 20:23–27.)

In

opposition, Defendant argues that the collateral estoppel doctrine does not apply because “the prior DVRO proceeding involved different issues, different elements, and different remedies than the tort claims asserted in this civil action. The DVRO proceeding concerned whether protective relief was warranted under the Domestic Violence Prevention Act (‘DVPA’), whereas this action seeks

to impose tort liability and recover monetary damages. The elements necessary to establish Plaintiff's tort causes of action were neither fully litigated nor necessarily decided in the DVRO proceeding." (Def.'s Opp. 4:7–11.) Defendant asserts that "the DVPA proceeding sought prospective protective relief to prevent future abuse, whereas this action seeks damages for alleged defamation, invasion of privacy, negligence, and intentional infliction of emotional distress. Accordingly, the claims asserted here are not the same causes of action adjudicated in the DVRO proceeding." (Id. at 8:7–10.)

Specifically,

as to the necessary elements of Plaintiff's causes of action for Intentional Infliction of Emotional Distress, Wrongful Intrusion into Private Matters, Public Disclosure of Private Facts, and Negligence, Defendant argues that "the DVRO court did not adjudicate all of these elements, nor were such issues necessary to the issuance of a restraining order." (Id. at 9:5–6.) "Nor did the DVRO court adjudicate damages, privileges, constitutional protections, defenses, causation, or the numerous other elements required to establish or defeat the tort claims asserted in this action." (Id. at 10:14–16.)

Defendant therefore argues that "Plaintiff's motion improperly attempts to convert the limited findings made in the DVRO proceeding into dispositive findings establishing tort liability and damages in this action." (Id. at 5:8–10.)

In reply,

Plaintiff clarifies that she "does not ask the Court to preclude every statement in the DVRO transcript. The facts are narrow: Elva accessed Lorena's medical records without consent; the Kaiser authorization did not give Elva consent to obtain those records; the authorization allowed Kaiser to release records to Lorena; Elva contacted Julian Jimenez; and Elva told him about Lorena's prior STD. Judge Richman stated those findings after submission." (Pl.'s Reply 4:16–21.) Plaintiff argues that "the access-without-consent and STD-disclosure findings were not incidental observations. They were the express and only stated basis for the determination that Elva disturbed Lorena's peace under Family Code section 6320 and for issuance of the restraining order. Judge Richman identified those acts and stated that they were sufficient to establish that Lorena's peace was disturbed." (Id. at 5:4–9.)

Defendant further argues that domestic violence restraining order proceedings "are designed to provide swift injunctive relief rather than to adjudicate complex tort liability and damages claims following full civil

discovery and motion practice.” (Def.’s Opp. 9:16–18, citing Fam. Code § 6300 [“An order may be issued under this part to restrain any person for the purpose specified in Section 6220, if an affidavit or testimony and any additional information provided to the court pursuant to Section 6306, shows, to the satisfaction of the court, reasonable proof of a past act or acts of abuse. The court may issue an order under this part based solely on the affidavit or testimony of the person requesting the restraining order.”].) Defendant argues that “applying issue preclusion under these circumstances would be inconsistent with the fairness considerations underlying collateral estoppel and would improperly transform a summary DVRO proceeding into a binding adjudication of complex tort claims that were never actually litigated or necessarily decided.” (Id. at 11:5–9.)

The Court agrees with Defendant that “the prior DVRO proceeding does not collaterally estop Defendant from litigating the claims asserted in this action because the tort claims presented here involve different issues, different elements, and different remedies than those addressed in the DVRO proceeding.” (Id. at 19:23–25.) The Court finds that while the conduct at issue between the parties is the same in both actions, the issues presented in Plaintiff’s DVRO action were not identical to the instant claims, and therefore the instant claims were not “actually litigated and necessarily decided” in the previous action. Even if the Court were to find that Defendant was collaterally estopped from relitigating the narrow factual issue of whether she accessed and disseminated Plaintiff’s medical records without authorization, these factual findings are insufficient to support summary adjudication of each of Plaintiff’s subject causes of action in their entirety, as further explained below.

B.

Intentional

Infliction of Emotional Distress

Plaintiff’s first cause of action alleges Intentional Infliction of Emotional Distress against Defendant. “The elements of a prima facie case for the tort of intentional infliction of emotional distress are: (1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff’s suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant’s outrageous conduct. Conduct to be outrageous must

be so extreme as to exceed all bounds of that usually tolerated in a civilized community.” (Wilson v. Hynek (2012) 207 Cal.App.4th 999, 1009.)

Here, Plaintiff argues that she “has presented sufficient evidence that: (1) her medical records contained sensitive information regarding an STD Lorena contracted in the past; (2) Elva wrongfully accessed Lorena’s confidential medical information; and (3) Elva wrongfully and intentionally revealed information about Lorena’s STD to Mr. Jiminez. Such intentional conduct is outrageous and satisfies the elements of a claim for intentional infliction of emotional distress.” (MSJ 15:11–15.)

In opposition, Defendant denies the underlying conduct alleged in the DRVO action, and argues that “whether a defendant’s conduct can reasonably be found to be outrageous is a question of law that must initially be determined by the court; if reasonable persons may differ, it is for the jury to determine whether the conduct was, in fact, outrageous.” (Berkley v. Dowds (2007) 152 Cal.App.4th 518, 534.) Here, Defendant argues that “substantial factual disputes exist regarding the nature of Defendant’s conduct, Defendant’s intent, the existence and severity of Plaintiff’s alleged emotional distress, and causation.” (Id. at 14:16–18.) “Given the parties’ sharply conflicting accounts of the relevant events, a reasonable trier of fact could conclude that Defendant did not engage in outrageous conduct.” (Id. at 15:1–3.)

In reply, Plaintiff maintains that “Judge Richman’s DVRO finding establishes the conduct; Lorena’s evidence supports severe distress and causation.” (Pl.’s Reply 9:19–20.) However, Plaintiff’s cited evidence is her own testimony during the DVRO proceedings that she saw a therapist once a week, and started taking medication. (Ex. 6 to Decl. of Frank, 36:25–37:7.) As Defendant notes, “while the Court may take judicial notice of the existence of prior court records and orders, judicial notice does not establish the truth of factual findings, testimony, or hearsay statements contained therein.” (Def.’s Opp. 4:13–15, citing Sosinsky v. Grant (1992) 6 Cal.App.4th 1548, 1564–1569; Day v. Sharp (1975) 50 Cal.App.3d 904, 914; Lockley v. Law Office of Cantrell, Green, Pekich, Cruz & McCort (2001) 91 Cal.App.4th 875, 882.)

Here, the Court finds the evidence proffered by Plaintiff, in the form of her own testimony in the DRVO proceedings, insufficient to meet her initial evidentiary

burden at the summary adjudication stage. Accordingly, the motion is denied as to Plaintiff's first cause of action.

C.

Wrongful Intrusion
into Private Matters

Plaintiff's fourth cause of action alleges Wrongful Intrusion into Private Matters against Defendant. "The action for intrusion has two elements: (1) intrusion into a private place, conversation or matter, (2) in a manner highly offensive to a reasonable person." (Shulman v. Group W Productions, Inc. (1998) 18 Cal.4th 200, 231.)

Here, Plaintiff argues that "the same evidence which supports Lorena's emotional distress claim also supports her wrongful intrusion claim: (1) Lorena's medical records contained sensitive information regarding an STD Lorena contracted in the past; (2) Elva wrongfully accessed Lorena's confidential medical information; and (3) Elva wrongfully and intentionally revealed information about Lorena's STD to Mr. Jiminez. Such conduct satisfies the elements of wrongful intrusion claim." (MSJ 16:7–11.)

In opposition, Defendant argues that "substantial disputes exist regarding authorization, consent, the nature and scope of any access to records, and whether Defendant's conduct was highly offensive." (Def.'s Opp. 16:25–27.) "Defendant specifically denies accessing or obtaining any medical information beyond the authorized x-rays and denies ever obtaining information regarding any alleged sexually transmitted disease diagnosis." (Id. at 17:9–11, citing Decl. of Elva Ramos ¶¶ 21–24.)

In reply, Plaintiff argues that "Judge Richman already decided that the document authorized Kaiser to release records to Lorena, not Elva, and found that Elva contacted Jimenez and told him about an STD." (Pl.'s Reply 7:13–14.) Plaintiff contends that "no reasonable juror is needed to decide that unauthorized access to a family member's Kaiser clinical information, followed by STD disclosure to her fiancé, is highly offensive." (Id. at 9:2–5.)

"Determining offensiveness requires consideration of all the circumstances of the intrusion, including its

degree and setting and the intruder's motives and objectives." (Shulman, 18 Cal.4th at 236 [internal quotations omitted].) Based on these guidelines, the Court finds that even assuming arguendo that Defendant was collaterally estopped from relitigating the issue of whether she intruded into Plaintiff's private medical records, Plaintiff has not met her initial burden to produce evidence showing that Defendant's conduct was highly offensive. Plaintiff provides no admissible evidence showing Defendant's motives and objectives, nor evidence of causation or damages.

Based on the foregoing, the Court finds Plaintiff has failed to meet her initial evidentiary burden at the summary adjudication stage. Accordingly, the motion is denied as to Plaintiff's fourth cause of action.

D.

Public

Disclosure of Private Facts

Plaintiff's fifth cause of action alleges Public Disclosure of Private Facts against Defendant. The elements of this tort are the "(1) public disclosure (2) of a private fact (3) which would be offensive and objectionable to the reasonable person and (4) which is not of legitimate public concern." (Shulman, 18 Cal.4th at 214.)

Here, Plaintiff argues that

Defendant "publicly disclosed (to Mr. Jimenez) private facts from Lorena's confidential medical records. The information disclosed served no legitimate public interest and a reasonable person would find the disclosure of an STD information offensive and objectionable." (MSJ 16:17–19.)

In opposition, Defendant argues that "the alleged communication to Plaintiff's boyfriend does not necessarily establish the 'publicity' element." (Def.'s Opp. 9:7–8.) "Defendant disputes that any information allegedly disclosed by her became public knowledge, was disclosed to the public at large, or was communicated to such a large number of persons that it became substantially certain to become public knowledge." (Id. at 16:2–4.) Defendant therefore maintains that "Plaintiff has not established through admissible evidence that any alleged private information was disseminated to the public at large." (Id. at 16:12–13.)

In reply, Plaintiff concedes that she “does not ask the Court to hold that every disclosure to one person automatically satisfies that element. The Court may deny [summary adjudication of] the Fifth Cause of Action if it is not prepared to decide publicity on this record.” (Pl.’s Reply 10:27–11:1.) Based on the foregoing, the Court finds Plaintiff has failed to meet her initial evidentiary burden to show a public disclosure of her private medical information. Accordingly, the motion is denied as to Plaintiff’s fifth cause of action.

E.

Negligence

Plaintiff’s sixth cause of action alleges Negligence against Defendant. To state a claim for negligence, a plaintiff must allege the elements of (1) “the existence of a legal duty of care,” (2) “breach of that duty,” and (3) “proximate cause resulting in an injury.” (McIntyre v. Colonies-Pacific, LLC (2014) 228 Cal.App.4th 664, 671.)

Here, Plaintiff argues that Defendant, “as a Kaiser employee, had a duty not to: (1) access Lorena’s confidential medical information without authorization; and (2) disclose such information. Elva breached the duty owed to Lorena by accessing Lorena’s confidential medical information and then disclosing it to Mr. Jimenez.” (Id. at 16:26–17:2.)

Defendant argues in opposition that there exist “disputes concerning both the existence and scope of any duty and whether any breach occurred.” (Def.’s Opp. 18:11–12.) As to the element of causation, “Defendant further testifies that Plaintiff experienced other personal, familial, and relationship-related circumstances during the relevant period that may have contributed to or caused the emotional distress and damages Plaintiff now attributes solely to Defendant.” (Id. at 18:15–17.) “Defendant [also] disputes both the existence and amount of the damages claimed and disputes that any alleged damages were proximately caused by Defendant’s conduct.” (Id. at 18:20–21.)

In reply,

Plaintiff argues that “duty exists because Elva, as a Kaiser employee with access to patient information, had a duty not to access or disclose Lorena’s

confidential medical information without permission, authorization, or a business need.” (Pl.’s Reply 10:6–8.) Plaintiff further argues that “causation and injury are supported by the same record: unauthorized access made the STD information available for misuse, and Judge Richman found Elva then disclosed it to Jimenez. Lorena suffered humiliation, distress, treatment, and medication. Defendant’s causation denial depends on denying access and disclosure; issue preclusion removes those denials.” (Id. at 10:10–14.)

The Court

notes that Plaintiff proffers no evidence, nor any legal authority, establishing the nature and extent of the duty of care owed to her by Defendant. The Court further notes that Plaintiff provides no evidence to support the elements of causation and damages. Based on the foregoing, the Court finds Plaintiff has failed to meet her initial evidentiary burden at the summary adjudication stage. Accordingly, the motion is denied as to Plaintiff’s sixth cause of action.

CONCLUSION

The motion for summary adjudication is denied.